

To: jsc@judiciary.org.za

CC: Complaints@judiciary.org.za

Subject: FORMAL COMPLAINT: Systemic Administrative Malfeasance, Compromise of Judicial Integrity, and Procedural Prejudice — Complainant: W.W. Matthee

Dear Secretariat of the Judicial Service Commission,

**LODGING OF COMPLAINT OF MISCONDUCT / ADMINISTRATIVE MALFEASANCE IN
TERMS OF SECTION 14 OF THE JUDICIAL SERVICE COMMISSION ACT, 1994 (ACT 9 OF
1994)**

1. Particulars of the Complainant

Full Name: Wilbur William Matthee (Sr.)

Capacity: Affected Litigant / Specialist Registered Nurse / Director: Ethic Hawks Forensic Governance & Compliance

Contact Details: 069 635 1435

Email: info@ethichawks.co.za

2. Nature of the Complaint

This complaint is formally brought under Section 14(4)(e) of the Judicial Service Commission Act, targeting severe administrative malfeasance and structural processing failures within the court administration that directly compromise the independence, impartiality, dignity, accessibility, efficiency, and effectiveness of the judicial system.

3. Evidentiary Foundation & Cross-Reference

The administrative malfeasance detailed herein is not speculative; it comprises verified data trails, systemic anomalies, and statutory breaches. The exhaustive evidentiary backing, metadata logs, and official notifications supporting this complaint are contained within the attached master file, referenced here verbatim: “DUAL STATUTORY COMPLAINT: Systemic POPIA Violations (Sec 8, 9, 19, 26) & Deemed PAIA Refusal (Sec 23) — Complainant: W.W.” (PDF).

4. Specific Material Grounds of Malfeasance

Ground 1: Compromise of Court Data Integrity & “Ghost Notifications”

As documented via system logs in the attached master file, the registry has continuously processed inaccurate, corrupted, and highly contradictory file indices. The generation of unverified, automated “ghost notifications” within the court’s administrative infrastructure has actively prejudiced active file management and compromised the fundamental reliability of judicial data.

Ground 2: Suppression of Official Records & Deemed Refusal of Access

The administration has engaged in a prolonged, deliberate withholding of official digital audio recordings of formal administrative and procedural proceedings. This suppression of public records amounts to a statutory deemed refusal of access, deliberately obstructing the transparency required for accountability and fair review.

Ground 3: Gross Breach of Data Security Protocols

The administrative infrastructure allowed the unlawful transmission of a stamped court file belonging to an entirely unrelated third party, containing highly sensitive psychiatric and clinical diagnoses. The failure of court management to immediately enact remediation or data-breach security protocols upon formal notification demonstrates a profound breakdown in basic administrative governance.

5. Electronic Affirmation & Statutory Validity (ECTA Anchor)

Take notice that this complaint, along with its supporting documentation, is executed and affirmed digitally pursuant to Section 13 of the Electronic Communications and Transactions Act (ECTA), Act 25 of 2002. Due to severe financial attrition directly resulting from the protracted institutional actions under dispute, physical commissioning is practically impossible. This digital affirmation carries full regulatory, statutory, and legal weight before the Commission.

6. Relief Sought

The Complainant respectfully requests that the Judicial Conduct Committee:

1. Intervene to investigate the structural and administrative malfeasance undermining the handling of this matter.
2. Compel the immediate release of all withheld official digital audio recordings.
3. Direct an audit into the corrupted index notifications (“ghost notifications”) actively distorting the file records.

NOTICE: This complaint is digitally affirmed under Section 13 of the ECT Act, 2002 and carries full statutory and regulatory weight. All supporting evidence is cross-referenced to the attached master evidentiary file.

Yours faithfully,

Sr. Wilbur William Matthee

Director, Ethic Hawks Forensic Governance & Compliance